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Tentative Ruling

Re: ***Pardis Orchards, LP v. Nor-Cal Pump & Well Drilling, Inc., et al.***
Superior Court Case No. 23CECG01183

Hearing Date: July 15, 2026 (Dept. 503)

Motion: by Defendant Western Farm Management, LLC for an Order
Determining Good Faith of Settlement

Tentative Ruling:

To take the matter off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 7/14/2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***French v. Boyajian***
Superior Court Case No. 22CECG01923

Hearing Date: July 15, 2026 (Dept. 503)

Motion: By Plaintiff for Terminating Sanctions

Tentative Ruling:

To deny. (Code Civ. Proc., §§ 2030.290, subd. (c), and 2031.300 subd. (c).)

Explanation:

Section 2023.010 defines “misuses of the discovery process” as including, “failing to respond or submit to an authorized method of discovery” and “disobeying a court order to provide discovery.” (Code Civ. Proc. § 2030.010, subds. (d) & (g).) Section 2023.030 states, in relevant part:

To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

* * *

(d) The court may impose a terminating sanction by one of the following orders:

(1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(Code Civ. Proc. § 2023.030, subd. (d)(1).)

Accordingly, terminating sanctions must be authorized by a specific discovery statute; they are not available merely because they are an option listed in Code of Civil Procedure section 2023.030. In the case at bench, plaintiff moves pursuant to Code of Civil Procedure sections 2030.290, subdivision (c), and 2031.300 subdivision (c).

The failure to respond to interrogatories is controlled by Code of Civil Procedure section 2030.290, subdivision (c). That section provides that if a party unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust, the court “shall” impose monetary sanctions. It is only when a party disobeys an order compelling responses that a terminating sanction is called for.

If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).

(Code Civ. Proc., § 2030.290, subd. (c).)

A party's failure to obey an order to respond to requests for production of documents is also subject to "the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc. § 2031.300, subd. (c).)

Courts generally follow a policy of imposing the least drastic sanction required to obtain discovery or enforce discovery orders, because the imposition of terminating sanctions is a drastic consequence, one that should not lightly be imposed, or requested. (*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604.)

Appellate courts have generally held that before imposing a terminating sanction, trial courts should usually grant lesser sanctions first. (Weil, Brown, Edmon & Karnow, *California Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2026) § 8:2235.) However this is not an "inflexible" policy, and it is not an abuse of discretion to issue terminating sanctions on the first request, where circumstances justify it (e.g. where the violation is egregious or the party is using failure to respond as a delaying tactic). (*Id.* at § 8:2236; *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1433.)

Sanctions are supposed to further a legitimate purpose under the Discovery Act, i.e., to compel disclosure so that the party seeking the discovery can prepare their case, and secondarily to compensate the requesting party for the expenses incurred in enforcing discovery. Sanctions should not constitute a "windfall" to the requesting party; the choice of sanctions should not give that party more than would have been obtained had the discovery been answered. (Weil, Brown, Edmon & Karnow, *supra*, § 8:2212.) "The sanctions the court may impose are such as are suitable and necessary to enable the party seeking discovery to obtain the objects of the discovery he seeks but the court may not impose sanctions which are designed not to accomplish the objects of the discovery but to impose punishment. [Citations.]" (*Caryl Richards, Inc. v. Superior Court In and For Los Angeles County* (1961) 188 Cal.App.2d 300, 304.) Where there is no showing that the requested discovery has any legitimate purpose, an order of terminating sanctions for failing to respond would be punitive rather than remedial. (*Morgan v. Ransom* (1979) 95 Cal.App.3d 664, 669-670.)

Here, defendant William Scott Boyajian ("Defendant") was ordered on May 19, 2025, to provide initial responses to interrogatories and requests for production and pay monetary sanctions to plaintiff's counsel. Defendant failed to serve responses as ordered by the court.

Plaintiff Michael French ("Plaintiff") does not argue how Defendant's failure to obey the court's May 19, 2026 order to provide discovery responses has prejudiced his ability to prepare for the forthcoming trial on August 10, 2026. Without more, the court cannot determine whether an order for terminating sanctions is necessary and appropriate over other remedial sanctions. Thus, the requested terminating sanction would be punitive rather than remedial. (*Morgan v. Ransom* (1979) 95 Cal.App.3d 664, 669-670.) For the forgoing reasons, Plaintiff's motion for terminating sanctions is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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